

**BEFORE
THE FEDERAL MARITIME COMMISSION**

DOCKET NO. 22-34

SEAFAIR USA LLC

VS.

STERLING CONTAINER LINE LIMITED AND
ATLANTIC FORWARDING LTD.

COMPLAINANT’S MOTION TO AMEND SCHEDULING ORDER

Pursuant to 46 CFR § 502.141(l) and 46 CFR § 502.71 of the Federal Maritime Commission’s Rules of Practice and Procedure, the Complainant SEAFAIR USA LLC (“SeaFair” or “Complainant”) hereby submits this Motion to Amend the Scheduling Order dated January 18, 2023 (“Scheduling Order”) [Dkt. 7], as amended by the April 26, 2023 Order (“First Amended Scheduling Order”) [Dkt. 14] and by the June 2, 2023 Order (“Second Amended Scheduling Order”) [Dkt. 16] granting the Parties’ Joint Motions to Amend Scheduling Order.

I. BACKGROUND

The Scheduling Order called for the Parties to serve all discovery requests by April 25, 2023 [Dkt. 7]. Respondents served their joint initial discovery requests on February 17, 2023. Complainant served its responses on April 04, 2023, after requesting an extension on March 03, 2023 [Dkt. 11], that was granted by the honorable Administrative Law Judge [Dkt. 12], and a brief 12-hour extension on April 03, 2023, that was granted by Respondents’ counsel. Complainant served its initial discovery requests on Respondents on March 10, 2023. However,

due to staff changes within Respondents' entities and the breadth of requests propounded by Complainant, Respondents requested a twenty-one (21) day extension to respond to Complainant's discovery requests. Complainant agreed to a fourteen (14) day extension. Respondents served their responses to the Requests for Admission and Interrogatories on April 24, 2023.

Counsel for the Parties consulted in good faith and mutually agreed to file a Joint Motion to Amend the Scheduling Order to extend the deadline to serve discovery requests to May 01, 2023 [Dkt. 13]. The only other deadline on the Scheduling Order altered by the requested extension was the deadline to complete discovery, which was modified to June 01, 2023. On April 26, 2023, the Chief Administrative Law Judge issued the Amended Scheduling Order granting the Parties' request for extension [Dkt. 14].

The Parties diligently attempted to resolve discovery disputes without involving the Commission and filed a Joint Motion to Amend the Scheduling Order on June 1, 2023 which allowed for: a one (1) day extension until June 02, 2023, for SeaFair to fully respond to outstanding discovery requests from Respondents; a seven (7) day extension until June 08, 2023, for the Parties to attempt to amicably resolve disputes relating to unanswered or incompletely responded discovery requests; and a ten (10) day extension until June 11, 2023 for the completion of all discovery, including the filing of discovery-related motions.

June 11, 2023 fell on a Sunday, therefore the deadline for the completion of all discovery, including the filing of discovery-related motions, was pushed until today, June 12, 2023. On June 12, 2023, the Parties attended a mediation conference. No agreement was reached. However, the Parties have tentatively agreed to attend a second mediation conference and Complainant seeks

to extend the discovery deadline once more to facilitate mediation efforts.

Pursuant to 46 C.F.R. § 502.71, Complainant has attempted to discuss this motion in a good faith effort to determine whether Respondents oppose the proposed extension. Respondents have tentatively agreed to extension of time but have not expressly consented to the instant Motion. Complainant hereby submits this motion requesting the extension of all remaining deadlines on the Second Amended Scheduling Order by ten (10) days to facilitate ongoing mediation attempts.

II. GOOD CAUSE

Complainant brings this motion for good cause. The documentation relating to the transactions between the Parties is extensive and requires time to carefully assemble and to review. Also, since Parties are actively pursuing mediation, allowing the extension will give parties the chance to further exchange documents and facilitate mediation. The Parties are diligently seeking to resolve the discovery-related disputes amongst counsel without involving the Commission. The granting of the motion to amend the Scheduling Order to allow the requested extensions will make a more efficient and just resolution to this action possible.

III. PROPOSED CHANGE TO SCHEDULING ORDER

Complainant proposes the following alterations to the Scheduling Order:

Event	Current Deadline	Proposed New Deadline
Close of all discovery	June 11, 2023 (effectively June 12, 2023 - first business day)	June 22, 2023
Complainant's brief, proposed findings of fact, and appendix.	June 27, 2023	July 07, 2023

Respondents' opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix.	July 26, 2023	August 07, 2023
Complainant's reply brief and responses to proposed findings of fact.	August 10, 2023	August 21, 2023

The adjustments to the current Scheduling Order will not significantly delay the proceeding.

Complainant believes good cause exists for granting the instant motion to amend the Scheduling Order and respectfully requests that the presiding officer extend the deadlines cited herein, as shown in the table above.

Date: June 12, 2023

Respectfully Submitted,

/s/ Shanshan Liang

Shanshan Liang, Esq.
Telephone: (850) 893-0670
Email: sliang@customscourt.com
LIANG + MOONEY, PLLC
2104 Delta Way, Suite #1
Tallahassee, FL 32303

Counsel for Complainant

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 12th day of June 2023, the foregoing Motion to Amend Scheduling Order was served via electronic mail on:

Federal Maritime Commission
Office of the Secretary
secretary@fmc.gov

Federal Maritime Commission
The Honorable Erin M. Wirth
Chief Administrative Law Judge
Presiding Administrative Law Judge
judges@fmc.gov

Ashley K. Kelley, Esq.
Telephone: (843) 720-4679
Email: Ashley.Kelley@wbd-us.com
Womble Bond Dickinson (US) LLP
5 Exchange Street
PO Box 999 (29402)
Charleston, SC 29401

Julius H. Bodie, Esq.
Telephone: (202) 857-4552
Email: Julius.Bodie@wbd-us.com
Womble Bond Dickinson (US) LLP
2001 K Street, NW
Suite 400 South
Washington D.C. 20006

/s/ Shanshan Liang
Shanshan Liang, Esq.